

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS

STATE OF COLORADO

Case No. 2017-3250

ORDER OF SUMMARY SUSPENSION

TO: DANIEL MICHELS

The State Board of Registered Psychotherapists ("the Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS AS FOLLOWS:

1. Daniel Michels ("Respondent") has been registered as a psychotherapist in the State of Colorado since October 13, 2016. Respondent's credential number is NLC.0106959.

2. The Board has jurisdiction over Respondent and the subject matter herein.

3. In June 2017, the Board received a complaint ("Case No. 2017-3250") alleging substandard practice and abuse of client/patient on the part of Respondent.

4. In March and April 2018, Respondent underwent a mental and/or physical evaluation(s) per Board Order. The evaluation(s) indicated Respondent was not safe to practice as a registered psychotherapist with reasonable skill and safety without treatment and monitoring.

5. Upon full investigation of the documents and information presented in regard to Case No. 2017-3250, the Board finds as follows:

- a. Respondent failed to notify the Board of a physical illness; a physical condition; or a behavioral, mental health, or substance use disorder that affects his ability to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care in violation of § 12-43-222(1)(f)(I), C.R.S.;
- b. Respondent failed to act within the limitations created by a physical illness; a physical condition; or a behavioral, mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may

endanger the health or safety of persons under his care in violation of § 12-43-222(1)(f)(II), C.R.S.;

- c. Respondent acted or failed to act in a manner that does not meet the generally accepted standards of the practice of psychotherapy in violation of § 12-43-222(1)(g)(I), C.R.S.;
- d. Respondent maintained relationships with clients that are likely to impair his professional judgment and/or increase the risk of client exploitation in violation of § 12-43-222(1)(i), C.R.S.

6. Upon full investigation of the documents and information presented, the Board finds objective and reasonable grounds to believe and finds that Respondent is not safe to practice as a registered psychotherapist with reasonable skill and safety to patients and the public health, safety, and welfare imperatively requires emergency action. As a result, Respondent's registration to practice psychotherapy in the State of Colorado must be summarily suspended.

7. The Board hereby summarily suspends Respondent's registration to practice as a registered psychotherapist pursuant to §§ 12-43-224(2)(c)(II)(A) and 24-4-104(4)(a), C.R.S.

8. Respondent cannot engage in the practice of psychotherapy in the State of Colorado or hold himself out as able to practice psychotherapy in the State of Colorado while his registration is suspended.

9. Any violation of this Order constitutes a violation of a lawful Board Order and may be grounds for further proceedings pursuant to § 12-43-224, C.R.S. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with this Order.

10. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

11. This Order shall be a public record in the custody of the Board.

THEREFORE, pursuant to the above, IT IS HEREBY ORDERED that under §§ 12-43-224(2)(c)(II)(A), 24-4-104(4) and 24-4-105(12), C.R.S., the registration of Daniel Michels to practice psychotherapy in the State of Colorado is summarily suspended.

DATED and SIGNED this 24th day of April, 2018.

On behalf of the Colorado State Board of
Registered Psychotherapists,

A handwritten signature in black ink, appearing to read "Dch", with a long, sweeping horizontal stroke extending to the right.

Darcie Magnuson
Program Director

CERTIFICATE OF SERVICE

This is to certify that I have duly served the enclosed **ORDER OF SUMMARY SUSPENSION** upon all parties herein by depositing copies of the same in the United State mail via electronic mail and First Class Mail, at Denver, Colorado this 24th day of April, 2018, address as follows:

Daniel Michels
781 11th St
Boulder, CO 80302

Via E-Mail to:
dan.j.michels@gmail.com

Jodanna L. Haskins, Esq.
Assistant Attorney General
Colorado Department of Law
Business and Licensing Section, Financial and Health Services Unit
1300 Broadway, 8th Floor
Denver, Colorado 80203

Via E-Mail to:
jody.haskins@coag.gov

A handwritten signature in blue ink, appearing to read "Denslow", is written over a horizontal line.

Board Staff